

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

1. BAMBI DESIREE BONAR V. CHRISTOPHER ROBIN BONAR

26FL0430

On May 5, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support, attorney's fees, and property control orders. All required documents were personally served on May 23, 2026, however, it says a completed Income and Expense Declaration was served, though it does not appear one was filed with the court.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on July 17th.

Petitioner is requesting guideline spousal support and need-based attorney's fees in the amount of \$10,000. She further requests sole and exclusive use and control of the marital residence located on Turner Circle in Cameron Park. She asks that the home be sold as soon as possible and any proceeds from the sale be placed in her attorney's trust account until further court order.

Respondent asks the court to impute Petitioner with full-time minimum wage and asks the court to deny or significantly reduce any support due to Petitioner's failure to disclose her nursing license. He does not oppose the request to sell the community residence, though he asks that it be listed for sale forthwith and the funds be held in his attorney's trust account instead of Petitioner's. He does object to Petitioner's request for exclusive use and possession of the marital residence. If Petitioner is awarded exclusive use and possession, then Respondent asks that she also be ordered to pay the mortgage and utilities.

The requests for spousal support and attorney's fees are both denied. To request attorney's fees and costs, a party must complete, file and serve an Income and Expense Declaration and, among other things, a completed FL-158. Likewise, a party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Here, Petitioner has failed to file a completed Income and Expense Declaration and the FL-158 she filed is missing pages. Accordingly, the requests for spousal support and attorney's fees are denied.

The request for exclusive use, possession, and control of the marital residence is also denied. The court does not find such an order to be necessary to preserve the community asset or for either party's safety.

Finally, turning to the sale of the marital residence, that request is granted. The parties are ordered to place the home up for sale forthwith. Proceeds from the sale are to

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be placed in Petitioner's attorney's trust account until further order of the court or written agreement of the parties.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #1: THE REQUESTS FOR SPOUSAL SUPPORT AND ATTORNEY'S FEES ARE BOTH DENIED FOR FAILURE TO FILE THE REQUISITE PAPERWORK. THE REQUEST FOR EXCLUSIVE USE, POSSESSION, AND CONTROL OF THE MARITAL RESIDENCE IS ALSO DENIED. THE COURT DOES NOT FIND SUCH AN ORDER TO BE NECESSARY TO PRESERVE THE COMMUNITY ASSET OR FOR EITHER PARTY'S SAFETY. THE PARTIES ARE ORDERED TO PLACE THE TURNER CIRCLE HOME UP FOR SALE FORTHWITH. PROCEEDS FROM THE SALE ARE TO BE PLACED IN PETITIONER'S ATTORNEY'S TRUST ACCOUNT UNTIL FURTHER ORDER OF THE COURT OR WRITTEN AGREEMENT OF THE PARTIES.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.